सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F. No.-S/3-MISC-PRO-516/2013 ACC (I) Part 7 **Date: 24.01.2022**

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 29.12.2021

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 29.12.2021 at 04:00 P.M. which was chaired by Shri P.V.N. Suresh Babu, Commissioner of Customs (Import/General). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

Name & designation	**Organization**
Shri Ranjit Kumar, Commissioner, (Export)	Customs, ACC, Mumbai
Shri M. Rammohan Rao, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri Vinay Kumar Arya, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Ms. Mamta Saini, Jt. Commissioner (Import)	Customs, ACC, Mumbai
Shri Sudhakar Pandey, Jt. Commissioner (Export)	Customs, ACC, Mumbai
Shri Amit Kumar Sharma, Jt. Commissioner (General)	Customs, ACC, Mumbai
Shri Nitish Pathode, Deputy Commissioner, EDI & Import Shed	
Shri Harish D. Hinduja, Asstt. Commissioner (PRO, Import)	Customs, ACC, Mumbai
Name of attendees of stakeholders	**Organization**
Shri Kaushal Thakkar, Shri Ketan Desai, Shri Sanjeev, Shri Rahul V Bhojani, Shri Dushyant Mulani	BCBA
Sh. Bala Ayer	ACAAI
Shri Manoj Singh, Sh. Ashok, Sh. Mayur, Sh. Nasir	MIAL
Shri Nimesh Desai	WISA
Shri Mahesh Kamble	Air India
Shri Rakesh Burman	WCCB
Shri Sanjay Patankar	BAR CC
Shri Harish Zade	Lufthansa Cargo
Shri Ajay Naik	BAR CC
Shri Errol D'souza	Air India
Shri Newton Fernandes	All Nippon Airlines

At the outset, Commissioner of Customs (Import/General) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 03.12.2021

1. Sh. Warkad Yogesh Nilkanth, Regional Deputy Director, WCCB, WR, Navi Mumbai requested to include the names of **restricted/prohibited wildlife species (plants and animals) in the Risk Management System**. Commissioner (Export) suggested that a letter may be sent to him in this regard so that the matter will be taken up with Risk Management Divison.

In the PTFC meeting held on 21.09.2021, Inspector, WCCB had informed that they were preparing the draft for the same and will forward the same in a day or two. However, no one was present in the meeting on behalf of WCCB in previous meetings held on 26.10.2021 and 03.12.2021. In previous meeting, ADC (Export) had suggested that a meeting may be convened with WCCB officials and they may be asked to come with a note on the said issue so that matter can be conveyed to DG, Systems. Commissioner suggested sending a letter to WCCB regarding the same.

Shri Rakesh Burman from WCCB informed that the regional deputy director of WCCB along with one inspector had visited ACC on 23.12.2021 and submitted the requisite documents regarding the incorporation of description based on local RMD instructions. JC (Export) confirmed the aforesaid and informed that their office is in the process of examination of documents and the same will be forwarded to DG/Systems. JC (Export) and WCCB agreed to close the point.

(Point Closed)

B. Fresh Agenda Points:

- **Points raised by Board of Airline Representative Cargo Committee:**

1. Introduction of new committee of BAR CC (Board of Airline Representatives Cargo Committee) Mumbai.

Shri Sanjay Patankar informed the chair and the members of the meeting about the newly formed committee of BAR CC and their functions.

(Point Closed)

2. Request to review the timeframe and fines/penalties imposed on the misrouted shipments into Mumbai

Shri Harish Zade informed that in case of misrouted cargos which are destined for some other ports, the process usually takes 3-4 weeks. He further informed that such cases are referred to SIIB (I) wherein goods are examined, adjudicated and penalty is imposed and similar time taking scenario for export part. He requested to reduce the time frame.

Commissioner (I) asked ADC (I) if any redundant process can be removed to expedite the clearance of such misrouted goods. ADC(I) informed that most of such cases are unmanifested cargo and it has to necessarily undergo the

process described by the sponsor of this point. ADC (I) further informed that the department can't avoid the procedure laid down for unmanifested cargo. He further suggested that BAR CC may approach him with some examples of such cases, and assisting further examination to find out where more time is being taken so that procedural improvements can be worked out.

(Point Closed)

- **Points raised by BCBA:**

3. HSN Classification changes, 2022:

BCBA requested to provide hand holding to trade regarding the new changes introduced in HSN with effect from 01.01.2022. BCBA suggested if NACIN can hold a Webinar for Custom Brokers and Trade for better understanding.

Shri Dushyant Mulani, BCBA requested the chair to coordinate with ADG, NACIN, Mumbai to arrange a training for all stakeholders in Mumbai Customs regarding the recent changes in HSN.

In this regard, this office has issued Public Notice No. 02/2022 dt. 31.12.2021 and the training regarding the same would be conducted in due course.

(Point Open)
(Action By: ADC(I))

4. 100 % examination being prescribed under FACELESS Assessment

BCBA informed that it is experienced that there are considerable instances where 100 % examination is being prescribed by FAG group. BCBA stated that 100 % examination should only be resorted to specific cases, otherwise in general, only 5 % random examination be prescribed.

BCBA suggested that through good office of Air Cargo Customs, necessary information be given that 100 % examination should not be prescribed in normal consignments and in cases, when 100 % examination orders are prescribed, the TSK counter and the DC should over rule such unwanted examination orders.

Shri Dushyant Mulani, BCBA informed the chair and the members regarding the aforesaid point. Commissioner (I) asked if this problem is with ACC, Mumbai. BCBA informed that this problem is occurring where FAG group is involved. Commissioner (I) informed that the matter would be taken up with FAG groups and situation would be assessed thereafter whether there is any RMS or any other agency instructions in such Bs/E. BCBA informed that they would furnish the list of such cases where such orders are given in AEO Tier-II and III level importers as well.

(Point Open)
(Action By: ADC(I))

5. Delay in getting BC Challan/Gatepass at MIAL and Air India Counter

BCBA informed that there is tremendous delay in clearance of import consignments, either the system is down or due to lack of staff. Members are also facing difficulty in reporting to MCSC/MIAL in such situation. BCBA requested MIAL to provide details of the person to be contacted from both the Custodian in case of any difficulty.

Mr. Nasir, MIAL informed the members that they have developed a software for online gate pass but the same is used by top 5 CHAs as on date. Mr. Nasir further informed that for any query/delay in getting gate pass at MIAL, Mr. Mukesh Marolia, Deputy Manager and Mr. Gaurav Shabnish can be contacted and furthermore, he informed that for any escalation in matter, Mr. Nasir, himself can be contacted as well.

Mr. Errol D'Souza, Air India informed that he is always available for the trade query but Commissioner (I) insisted Air India to issue a notice giving the name of the concerned persons who can be contacted while any issue is faced regarding gate pass and clearance in Air India Shed. Mr. Errol D'Souza, Air India requested for some time so that he can take up the matter with his higher officials.

(Point Open)
(Action By: Air India)

6. Delay in re-imbursement of TDS amount from Air India.

BCBA submitted that AIR INDIA is delaying the re-imbursement of TDS amount since past 2 years. i.e. 2016-17 & 2017-18. BCBA requested to instruct AIR INDIA Authorities not to delay the re-imbursement amount to members.

Mr. Errol D'Souza, Air India informed that they have noted the point and this point has already been brought to the notice of their Finance Team. Commissioner (G) directed Air India to check it up and give a commitment date to the trade. Air India requested for some time.

(Point Open)
(Action By: Air India)

7. Difficulty faced while claiming of GST amount paid to MIAL / MCSPL.

BCBA submitted that the tax invoices issued by MIAL/MCSPL are neither generating the QR Code nor mentioning IRN No. as per the norms laid down by GST E Invoice, resulting in members not being able to claim the GST amount for payments being made to MIAL/MCSPL. BCBA requested to direct MIAL/MCSPL to provide proper invoices to members to claim their GST amount.

Shri Murthy, MIAL informed the members that clearing agents usually generate TSP receipts at their office by filling the required details in the online portal but in some cases where information filled by them is not complete/correct, invoice generated might not be having QR code or IRN NO. and the same gets reflected in their dashboard that the information is not correct/complete. Commissioner (G) suggested BCBA to approach MIAL on case to case basis since it is not a general issue.

(Point Closed)

8. Observation in Minutes of the ACC PTFC Import Meeting held on 03.12.2021 regarding Preparation of Note Sheet by AO's directly.

BCBA requested for an update on this issue since the practice is still continuing.

Commissioner (I) suggested BCBA to find a solution after discussion with ADC (I) and JC (I) to which BCBA agreed,

(Point Closed)

Commissioner (Export) and Ms. Mamta Saini, Nodal Officer, JC(I) informed all the members about NTRS, 2022 and requested to participate whole heartedly to make this event a huge success.

The meeting ended with a vote of thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

(M. Rammohan Rao)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
2. All Addl./Jt. Commissioner of Customs, Import / Export / General, ACC.
3. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
4. DC/EDI for uploading on ACC website (via E-mail)
5. PGAs, ACC, Mumbai (via E-mail)
6. Office copy.